

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

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ORAYA EVANS,

Plaintiff,

-against-

SUMMONS

Basis of Venue
Place of Incident

THE CITY OF NEW YORK, NYPD OFFICER
FORTUNE DOUGLAS (Shield # 15959),
and NYPD OFFICERS JOHN and JANE DOE #'s 1-12
(names and numbers unknown at this time), and
Other Unidentified members of the New York City
Police Department,

Plaintiff Designates
New York County
as the place of trial

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 4, 2022

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
NYPD OFFICER FORTUNE DOUGLAS (Shield # 15959), Criminal Intelligence Section, 1 Police
Plaza, New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

-----X
ORAYA EVANS,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
FORTUNE DOUGLAS (Shield # 15959),
and NYPD OFFICERS JOHN and JANE DOE #'s 1-12
(names and numbers unknown at this time), and
Other Unidentified members of the New York City
Police Department,

Defendants.
-----X

Plaintiff **Oraya Evans**, by her attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges
upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution the laws of the State of New York. Plaintiff was unlawfully stopped, searched, and arrested by the defendants. Plaintiff was deprived of her federal constitutional rights, state constitutional rights, and common law rights when the individually named police defendants subjected her to, among other things, assault, false arrest, unlawful search and seizure, negligence, gross negligence, intentional and negligent infliction of emotional distress, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive

damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Plaintiff is a resident of the New York County, State of New York.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD OFFICER FORTUNE DOUGLAS, assigned Shield # 15959, who on or about January 13, 2021 was employed with the NYPD Criminal Intelligence Unit, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.¹
5. NYPD OFFICER FORTUNE DOUGLAS (Shield # 15959) is being sued in his individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-12 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #'s 2-12 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to

¹ Recent communications with the NYPD Employment Verification Office confirms that defendant officer Fortune Douglas is no longer employed by the NYPD. Service of this summons and complaint with reflect this information.

the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiff in furtherance of her State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(h) hearing examination of Plaintiff on August 6, 2021.

STATEMENT OF FACTS

15. On January 13, 2021 at approximately 6:00 a.m. inside of 71 West 112th Street, Apartment 2C in New York County, New York, numerous police officers from the Criminal Intelligence Unit, and other unknown police commands, including upon information and belief, defendant NYPD Officer Fortune Douglas (Shield # 15959) and P.O. John and Jane Does #1-12, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff.

16. On January 13, 2021 at approximately 6:00 a.m., Plaintiff was asleep in the apartment she has lived in for several years. Also inside the apartment was Plaintiff's pregnant seventeen-year old daughter, who was asleep on the couch in the living room, and Plaintiff's then-girlfriend Daurice Jones, who was in Plaintiff's bed. Plaintiff was awoken by the sound of her door being violently broken by approximately ten defendant NYPD officers, including defendant NYPD Officer Fortune Douglas (Shield # 15959). The defendant NYPD officers then entered her home, including defendant NYPD Officer Fortune Douglas (Shield # 15959). Approximately two of the defendant NYPD officers wore white NYPD uniform shirts, and the remainder wore all-black SWAT tactical outfits.
17. Upon hearing the noise of her front door being destroyed, Plaintiff exited her bed and attempted to put a bathrobe on. Before she could do so, approximately four defendant NYPD officers broke Plaintiff's locked bedroom door and entered Plaintiff's bedroom. Once inside Plaintiff's bedroom, all four defendant NYPD officers pointed firearms at Plaintiff and commanded Plaintiff to remain still. Plaintiff was then placed in handcuffs while she was nude. Although all the defendant NYPD officers present in her home were male, they refused to allow Plaintiff to dress, despite her request to be allowed to do so. Defendant NYPD officers, including defendant NYPD Officer Fortune Douglas (Shield # 15959), also handcuffed Daurice Jones and Plaintiff's pregnant daughter.
18. Defendant NYPD officers conducted an illegal search of the apartment, and informed Plaintiff they had recovered drug paraphernalia, without any more specificity. During this time, Plaintiff remained handcuffed and nude for approximately five minutes until she was given a shirt and pants.

19. At the conclusion of the illegal search of Plaintiff's home by defendant NYPD officers, Plaintiff and Daurice Jones were taken to an NYPD precinct in handcuffs. At the time Plaintiff was forcibly removed from her home, her pregnant daughter was still in handcuffs inside of her home.
20. At the precinct, Plaintiff was searched and then detained for approximately fourteen hours in a holding cell. Plaintiff was issued a Desk Appearance Ticket and released from the Precinct.
21. During her confinement at the NYPD Precinct, Plaintiff was subjected to depraved, filthy and inhumane conditions.
22. A search warrant executed by defendant NYPD officers that morning lists an "Earl Dunn" as the individual subject of the search warrant. Earl Dunn is not, and has never been a resident of 71 West 112th Street, Apartment 2C while Plaintiff has lived there, and Plaintiff does not know a person named Earl Dunn. Plaintiff's name, and the name of her twin daughters were not on the search warrant even though they are the only residents of the apartment, and the only names on the lease.
23. Plaintiff made approximately four court appearances. Plaintiff accepted an Adjournment in Contemplation of Dismissal on March 25, 2021, and her case was dismissed and sealed on September 24, 2021.
24. As a direct result of Plaintiff's false arrest, she was illegally detained for approximately 15 hours. In the course of violently and illegally entering Plaintiff's home, defendant NYPD officers unnecessarily broke Plaintiff's front door and bedroom door. Plaintiff has been sent papers from her apartment building's management company that she was in violation of her lease on account of her false and illegal arrest. Additionally, nearly one year after Plaintiff's house was illegally and violently entered by defendant NYPD officers, Plaintiff remains unable to fall asleep before

7:00 a.m. each day because of chronic and profound fear the police will again break into her house. Plaintiff now discusses the illegal police conduct with her psychiatrist.

FIRST CAUSE OF ACTION

ASSAULT

25. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 25 with the same force and effect as if more fully set forth herein. ^[L]_[SEP]
26. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to Plaintiff, and that such acts caused apprehension of such contact in Plaintiff. Plaintiff was assaulted by defendant NYPD Officer Fortune Douglas (Shield # 15959) and numerous P.O. John and Jane Does prior to her false and illegal arrest when said defendants pointed firearms directly at her person with no justification.
27. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct. ^[L]_[SEP]
28. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior. ^[L]_[SEP]

SECOND CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

29. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 28 as if fully set forth herein.

30. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
31. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
32. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

33. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.
34. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FOURTH CAUSE OF ACTION

FAILURE TO INTERVENE

35. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 34 with the same force and effect as if more fully set forth at length herein.

36. Defendants had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD, subjecting Plaintiff to, *inter alia*, assault, unlawful search and seizure, and illegal detention.
37. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
38. As a result of the foregoing, Plaintiff was subjected to assault, illegal search and undue force upon her person over the course of her false arrest.
39. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
40. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

41. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.
42. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

43. As a result of the foregoing, Plaintiff was deprived of liberty and sustained great emotional injuries.
44. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

45. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
46. All of the aforementioned acts of defendants NYPD OFFICER FORTUNE DOUGLAS and NYPD OFFICERS JOHN and JANE DOE #1-12, their agents, servants, and employees, were carried out under the color of state law.
47. All of the aforementioned acts deprived Plaintiff of her rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
48. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
49. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

50. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

51. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
52. As a result of the aforesaid conduct by defendants NYPD OFFICER FORTUNE DOUGLAS and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff was subjected to an illegal, improper, and false arrest by the defendants NYPD OFFICER FORTUNE DOUGLAS and NYPD OFFICERS JOHN and JANE DOE #1-12, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
53. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, she was put in fear for her safety, and was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF

UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

54. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
55. Plaintiff was searched by defendants NYPD OFFICER FORTUNE DOGULAS and NYPD OFFICERS JOHN and JANE DOE #1-12 without an individualized reasonable suspicion that Plaintiff had committed any crime or was in possession of any illicit contraband, illegal weapons, or any other illegal substances.

56. As a result of the aforesaid conduct by defendants NYPD OFFICER FORTUNE DOUGLAS and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff's home and person was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe Plaintiff was in possession of contraband or any illegal substance as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.
57. As a result of the foregoing, Plaintiff was deprived of her Constitutional rights and has suffered mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FOURTH CLAIM FOR RELIEF

DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

1. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
2. Defendants NYPD OFFICER FORTUNE DOUGLAS and NYPD OFFICERS JOHN and JANE DOE #1-12 created false evidence against the plaintiff, alleging that she committed the crimes of criminal possession of a controlled substance, criminal use of drug paraphernalia, and unlawful possession of marijuana.
3. Defendants NYPD OFFICER FORTUNE DOUGLAS and NYPD OFFICERS JOHN and JANE DOE #1-12 forwarded false evidence and false information to prosecutors in the Manhattan County District Attorney's Office – namely, the defendants falsely informed prosecutors *inter alia*, that they alleged Plaintiff possessed a controlled substance, marijuana, and narcotics paraphernalia, at the time of her arrest, when, in fact, they had no physical evidence or other reliable evidence to establish the Plaintiff had committed the aforementioned offenses, and, in fact, did not have probable cause to arrest her for said offenses.

4. Defendants NYPD v and NYPD OFFICERS JOHN and JANE DOE #1-12 misled the prosecutors by creating false evidence against the Plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.
5. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants NYPD OFFICER FORTUNE DOUGLAS and NYPD OFFICERS JOHN and JANE DOE #1-12 violated Plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
6. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, she was put in fear for his safety, and she was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF

FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

7. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
8. Defendants NYPD OFFICER FORTUNE DOUGLAS and NYPD OFFICERS JOHN and JANE DOE #1-12 had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in defendants' presence by subjecting her to an arrest while nude and failing to provide her with any clothing. Defendant officers failed to provide accurate information the District Attorney regarding the quality and quantity of the evidence seize and the reason for the discrepancy in the search warrant. This misrepresentation and falsification of evidence regarding the circumstances surrounding Plaintiff's arrest throughout all phases of the criminal proceedings.
9. Defendants NYPD OFFICER FORTUNE DOUGLAS and NYPD OFFICERS JOHN and JANE DOE #1-12 further violated Plaintiff's constitutional rights when they failed to intercede and

prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.

10. As a result of the defendants' failure to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, Plaintiff sustained, *inter alia*, emotional injuries, Plaintiff's liberty was restricted for an extended period of time, she was put in fear for her safety, and she was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SIXTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

11. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
12. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
13. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
 - A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
 - C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,

D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and

E. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

14. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.

15. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.

16. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.

17. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff's constitutional rights.

18. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiff's constitutional rights.

19. The acts complained of deprived the Plaintiff of her right:

F. Not to be deprived of liberty without due process of law;

G. To be free from seizure and arrest not based upon probable cause;

H. Not to have summary punishment imposed upon them; and

I. To receive equal protection under the law.

WHEREFORE, ORAYA EVANS, Plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
January 4, 2022

Respectfully submitted:

By: /s/ Sydney O'Hagan
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40 Exchange Place
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TO:
CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER FORTUNE DOUGLAS (Shield # 15959), Criminal Intelligence Section, 1 Police Plaza, New York, NY 10038

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
January 4, 2022

Sydney O'Hagan /s/
Sydney O'Hagan, Esq.